

diminished by taking various relevant factors into account, including (1) the novelty and difficulty of questions involved and the skill displayed in presenting them, (2) the extent to which the nature of the litigation precluded other employment by the attorneys, (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award, (4) the quality of the representation, and (5) the results obtained. (Civ. Code, § 1790 *et seq.*; *Pulliam v. HNL Automotive Inc.* (2021) 60 Cal.App.5th 396, 406; *Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556.)

Here, Plaintiff submits that counsel took the matter on contingency, and obtained an excellent result. The contingent risk taken by counsel, and the settlement amounting to approximately two times the alleged value of the vehicle to be above average to the statutory relief afforded in these actions, supports granting fee enhancement. Though plaintiff suggests undue delay, the timeline supports a finding that all parties treated the matter as proceeding to trial. The steady nature of the discovery conducted and law and motion practice suggests as much. This would not constitute a delay, much less undue delay. Moreover, plaintiff does not suggest that the delay precluded other employment. Over the roughly 18 months between the first engagement with the client to the date of settlement, the firm spent, on average, 1.5 hours per month on the matter. Such a time commitment does not support the conclusion that this action was so involved as to preclude commitment to other work. This case also did not appear to present novel or complex issues that would support a substantial fee enhancement. The court applies a reduced multiplier of 1.1 to the lodestar.

The court therefore grants attorney's fees for Plaintiff in the reduced amount of \$10,697.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** July 27, 2026.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***VanRyn v. Fresno Unified School District***
Superior Court Case No. 25CECG01812

Hearing Date: July 28, 2026 (Dept. 403)

Motion: Motion for a Protective Order

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on July 27, 2026
(Judge's initials) (Date)